TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
SEPTEMBER 30, 2019
MINUTES

Green arrows are hyperlinks to the recording

Attachment 1—Staff Report

Present: Glyn Cowden, David Rubin, Megan Stevens, Stephen Wood, Stephen Duke
Absent: Barry Wolff, Joseph Belton.
Staff: Michael Robertson, Julia Copeland, Claude Tackett, Lynnette Lynes

Mr. Robertson called the meeting to order at 6:00 pm and stated that the Board would need to elect a chairperson for the meeting.

The Board elected Mr. Cowden as chair for this meeting. Mr. Cowden reviewed the procedures with the public.

A. Administration of Oath

Mr. Cowden administered the oath to those speaking.

B. Approval of Agenda

Mr. Wood moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.

C. Approval of Minutes

Mr. Wood moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.

D. Public Comment

There being no comments, Mr. Cowden continued with the agenda.

E. General Correspondence

No correspondence.

F. Business

Staff Report

1. **Request for Rehearing, Case V-23-19, 754 Pitt Street, TMS# 532-09-00-245, Appeal for relief from the strict application of §156.313 (E)(3)(c) to allow maximum building area to exceed 5,500 square feet regardless of lot size. Correspondence**
2. **Case V-23-19, 754 Pitt Street, TMS# 532-09-00-245, Appeal for relief from the strict application of §156.313 (E)(3)(c) to allow maximum building area to exceed 5,500 square feet regardless of lot size.**

▶ Mr. Robertson stated that the applicant has asked for a continuance in order to consider some alternatives.

▶ *Mr. Rubin moved for approval of the continuance to next month's meeting. Mr. Wood seconded the motion. All in favor.*

3. **Case A-8-19, Earl's Court, 404, 410, & 412 Hibben Street, TMS# 532-01-00-138, 139, 141, & 311, Appeal of the Town Administrator's decision to withhold building permits "until all legal issues related to the Cassina parking agreement have been resolved with finality." Applicant requests the Board grant relief ordering the Town to continue to review and process building permit applications as the "mere filing of a lawsuit does not cause a project to no longer comply with zoning." CORRESPONDENCE**

▶ Mr. Robertson stated that the applicant has asked for a continuance.

▶ *Mr. Duke moved for approval of the continuance to the next month's meeting. Ms. Stevens seconded the motion. All in favor.*

4. **Case V-35-19, 28 Edenton Rd., TMS# 535-06-00-756, Appeal from the strict application of the I'On Planned Development Ordinance to designate lot as "rear yard" type. Lot currently is considered "all-yard" lot. (current lot designation revised 9.20.19)**

▶ Mr. Danny Broadwater, owner reviewed the request with the Board.

Mr. Wood asked if the request is for the rear yard and the setback. Mr. Robertson answered in the affirmative.

Mr. Cowden asked if there is a historic tree that would require the house to sit farther back on the lot. Mr. Broadwater answered in the affirmative.

Mr. Wood asked if the house would face Edenton. Mr. Broadwater answered in the affirmative.

Mr. Rubin asked if all conditions have been met for the ARB approval. Mr. Broadwater answered in the affirmative. Mr. Rubin asked if the adjacent homes received variances. Mr. Broadwater answered in the affirmative.

Ms. Monika Bonn-Miller, 37 Jane Jacobs Street, stated that the lot coverages are established for a reason and suggested that they should remain as established.

There being no further comments, Mr. Cowden closed public comment.

Ms. Stevens asked if I'On ARB approved the plans. Mr. Broadwater answered in the affirmative.

- *Ms. Stevens moved for approval of the request for setback and rear yard designation based on the fact that there is a historic tree, the lot is unusually shaped and ARB has approved the plans. Mr. Wood seconded the motion. All in favor.*

5. **Case S-7-19, 684 Atlantic St., TMS# 532-06-00-110, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast. (Case Number Revised)**

- Mr. Robert Convey, owner, reviewed the request with the Board.

Mr. Wood asked about parking. Mr. Robertson answered that the applicant has offered three options for consideration. He stated that the Board would need to determine which parking option was desired. Mr. Wood asked if the proposed structure had been built. Mr. Convey answered in the affirmative. Mr. Wood asked if the applicant is comfortable with parking option #3. Mr. Convey answered in the affirmative.

There being no comment, Mr. Cowden closed public comment.

▶ *Mr. Wood moved for approval of the request with condition that parking option #3 is used. Mr. Rubin seconded the motion. All in favor.*

6. Case V-36-19, 580 Center St., TMS# 532-09-00-224, Appeal from the strict application of Section 156.303 (C) R-1 Low Density Residential setbacks to allow a 20-foot front yard. Zoning district requires a 30-foot front yard.

▶ Matt McCauley, representative for the owner, reviewed the request with the Board.

Mr. Duke asked if the home was moved forward, would it save the historic 33.5 oak. Mr. McCauley answered that it was possible, depending on the tree.

Mr. Wood asked if the accessory dwelling unit (ADU) request would need to come back to the Board. Mr. Robertson answered that the tree removal has already been approved.

Ms. Stevens asked the reason for moving the house forward. Mr. McCauley answered that moving the structure forward would allow for better drainage of the lot.

There being no comments, Mr. Cowden closed public comments.

▶ *Mr. Rubin moved for approval of the request based on the findings that tree removal has been approved by the Town and that it would allow for better drainage of the lot. Mr. Duke seconded the motion. All in favor.*

G. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 6:37 pm.

Submitted by,
L. Lynes
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